

**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY
CRIMINAL DIVISION**

STATE OF FLORIDA

Case Nos: 2021-1143CFAES
2022-3171CFAES

v.

Section: 2

MATTHEW AARON DAVIS,
SPN: 00626638, Defendant.

**ORDER DENYING DEFENDANT'S MOTION
FOR POSTCONVICTION RELIEF**

THIS CAUSE came before the Court on Defendant's *pro se* "Motion for Postconviction Relief," filed on May 29, 2026, and "Amended Motion for Postconviction Relief Pursuant to Rule 3.850," filed on June 25, 2026, pursuant to Florida Rule of Criminal Procedure 3.850. Having reviewed the motions, record, and applicable law, the Court finds as follows:

Procedural History

On May 2, 2023, in case number 21-1143CFAES, Defendant pleaded guilty to burglary, dealing in stolen property, and false verification of ownership. (*See* Exhibit A: Plea Form). In case number 22-3171CFAES, Defendant pleaded guilty to two counts of aggravated assault. *Id.* The Court sentenced Defendant to time served on all counts, in accordance with his negotiated plea agreement. (*See composite* Exhibit B: Judgments and Sentences). Defendant did not timely file a direct appeal in either case.

On December 11, 2023, Defendant filed correspondence, which the Court treated as a motion to withdraw plea and dismissed as untimely on January 10, 2024. Defendant did not appeal.

On July 15, 2024, Defendant filed an unsigned motion for postconviction relief. On August 28, 2024, the Court issued an order striking the motion with leave to amend. On September 7, 2024, September 25, 2024, and September 27, 2024, Defendant filed amended motions for postconviction relief. On February 28, 2025, Defendant filed a motion requesting that the Court "issue a ruling" on the amended motion filed on September 27, 2024. Accordingly, the Court deemed the motions filed on September 7, 2024, and September 25, 2024, to be abandoned by Defendant, and on June 3, 2025, denied the amended motion filed on September 27, 2024. Defendant did not appeal.

Analysis

Pursuant to Florida Rule of Criminal Procedure 3.850, the Court must determine if Defendant's motion is timely and facially sufficient. *See Spera v. State*, 971 So. 2d 754, 758 (Fla. 2007). All motions for postconviction relief must contain an oath entered under penalty of perjury. *See Fla. R. Crim. P. 3.850(b)*; *Pinder v. State*, 804 So. 2d 350, 351 (Fla. 4th DCA 2001). The two-year period for filing a motion for postconviction relief begins to run thirty days after the defendant is sentenced or, if the defendant appealed his judgment and sentence, after the mandate issues from a direct appeal. *See Fla. R. Crim. P. 3.850(b)*; *Beaty v. State*, 701 So. 2d 856, 857 (Fla. 1997). Here, Defendant's judgments and sentences became final in or about June 2023 because he did not file a timely appeal. Although Defendant's motion and amended motion contain an oath, the motions are untimely because they are filed approximately a year after the judgments and sentences became final. In the amended motion, Defendant asserts newly discovered evidence as an exception to the two-year time period for rule 3.850 motions.

Rule 3.850 provides certain exceptions to the two-year time period, including for claims based on newly discovered evidence. *See Fla. R. Crim. P. 3.850(b)(1)*. When alleging a claim of newly discovered evidence, a defendant must demonstrate that he filed the claim within two years of the date the evidence *could have been* discovered by the use of due diligence. *See Fla. R. Crim. P. 3.850(b)(1)*; *Bolender v. State*, 658 So. 2d 82, 85 (Fla. 1995); *Burns v. State*, 110 So. 3d 96 (Fla. 2d DCA 2013). Further, "in order to obtain relief on a claim of newly discovered evidence, a claimant must show, first, that the newly discovered evidence was unknown to the defendant or defendant's counsel at the time of trial and could not have been discovered through due diligence and, second, that the evidence is of such a character that it would probably produce an acquittal on retrial." *Mills v. State*, 786 So. 2d 547, 549 (Fla. 2001) (citing *Jones v. State*, 709 So. 2d 512 (Fla. 1998)); *see also Wyatt v. State*, 78 So. 3d 512, 523 (Fla. 2011). A conclusory claim of "manifest injustice" does not relieve a defendant of the time bar contained in rule 3.850. *See State v. Manning*, 121 So. 3d 1083, 1085 (Fla. 4th DCA 2013) (quoting *Hall v. State*, 94 So. 3d 655, 657 (Fla. 1st DCA 2012)); *McDonald v. State*, 133 So. 3d 530, 530 (Fla. 2d DCA 2013).

As an initial matter, the Court notes that although Defendant's second pleading, filed on June 25, 2026, is titled as an "amended" motion, it raises new claims regarding newly discovered evidence that were not raised in the prior motion. In the motion filed on May 29, 2026, Defendant asserts multiple grounds of ineffective assistance of counsel, violations of his constitutional rights,

and an involuntary plea, all related to an alleged conflict of interest between his employer and entities involved in his arrest and prosecution. In the motion filed on June 25, 2026, Defendant asserts newly discovered evidence related to settlement of *Taylor v. Nocco*, Case No. 8:21-cv-00555-SDM-CPT (M.D. Fla.), and the Pasco County Sheriff Office's (PCSO) Intelligence-Led Policing ("ILP") program, as well as ineffective assistance and an involuntary plea related to trial counsel's alleged failure to advise about the impact of the ILP program on Defendant's case. Additionally, Defendant's amended motion alleges, as a fourth ground, a conflict of interest due to "overlapping institutional relationships between his employment" and entities involved in his criminal proceedings, which appears to continue arguing the claims raised in the prior motion. As to Defendant's claim about a conflict of interest and impartial tribunal, Defendant acknowledges that it "is subordinate to Grounds One through Three [raising an exception for newly discovered evidence] and does not rely upon it as the basis for accepting this motion from the limitation period." Because Defendant's fourth ground of the amended motion and the grounds in the motion filed on May 29, 2026, do not allege a valid exception to the time restraints in rule 3.850, and the Court is unable to identify any applicable exceptions, these claims are untimely. Moreover, even if the claims were properly before this Court, to any claims of prosecutorial misconduct, malicious prosecution, and trial court error, should have been raised on direct appeal and thus, are procedurally barred from consideration in a postconviction motion. *Spencer v. State*, 842 So. 2d 52, 60-61 (Fla. 2003); *Pedroso v. State*, 420 So. 2d 908 (Fla. 2d DCA 1982). Accordingly, Defendant's motion filed on May 29, 2026, and his fourth ground in the motion filed on June 25, 2026, must be dismissed.

As to Defendant's claims of newly discovered evidence, the Court finds that the *Taylor v. Nocco* case does not qualify as newly discovered evidence and therefore, the time-exception under rule 3.850(b) does not apply. Defendant alleges that the settlement agreement in *Taylor v. Nocco* in the U.S. Middle District Court of Florida includes information about the PCSO's ILP program that could not have been discovered through any exercise of diligence within two years of his judgments and sentences becoming final. However, *Taylor v. Nocco* appears to have been initiated in or about 2021, at least two years prior to Defendant entering his plea in the above-styled cases. Although *Taylor v. Nocco* did not reach resolution prior to Defendant pleading in his cases, the Court is unpersuaded by Defendant's argument that the information discussed in *Taylor v. Nocco*, which Defendant asserts is relevant to his case, could not have been discovered through diligent

efforts prior to the *Taylor v. Nocco* settlement. To be entitled to relief on a claim of newly discovered evidence relating to a guilty plea, the evidence must not have been known by the trial court, the party, or counsel at the time of the plea, and it must appear that defendant or defense counsel could not have known of it by the use of diligence. *Long v. State*, 183 So. 3d 342, 346 (Fla. 2016); *see also Burns v. State*, 110 So. 3d 96, 97 (Fla. 2d DCA 2013) (indicating that a defendant must demonstrate that the motion was filed within two years from the date that the facts *could* have been discovered, not just from when the facts were actually discovered).

Additionally, Defendant appears to contradict his own claims that the alleged newly discovered evidence could not have been discovered through any exercise of diligence. In ground two of the motion, Defendant asserts that trial counsel “knew or should have known that the Defendant had been designated a Prolific Offender under the PCSO ILP program and . . . surveillance characteristic of the program exceeded constitutional limits.” Defendant cannot simultaneously allege claims that contradict one another. *See Davis v. State*, 938 So. 2d 555, 558 (Fla. 1st DCA 2006) (affirming denial of motion in part because the allegations contradict each other); *see also Munoz v. State*, 2 So. 3d 1087, 1088 (Fla. 3d DCA 2009) (affirming denial of motion in which the postconviction claim is refuted by a previous contradictory postconviction claim). The Court is unpersuaded that the following allegations can both be true: that information about the PCSO’s ILP program could not have been discovered until the resolution of *Taylor v. Nocco* and that trial counsel provided ineffective assistance for failing to investigate or otherwise act upon knowledge of the same program.

Lastly, the settlement of *Taylor v. Nocco* does not establish new caselaw, and even if it did, new caselaw is not “*evidence*” for purposes of asserting a “newly discovered evidence” claim. *C.f. Walton v. State*, 246 So. 3d 246, 252 (Fla. 2018) (“Viewing decisional changes in the law as newly discovered ‘facts’ would erase the need for a retroactivity analysis pursuant to *Witt*”) (citing *Witt v. State*, 387 So. 2d 922, 931 (Fla. 1980) (*cert. denied*, 449 U.S. 1067 (1980)) and *Coppola v. State*, 938 So. 2d 507, 510–11 (Fla. 2006)). Similarly, the settlement of *Taylor v. Nocco* does not establish a fundamental constitutional right which would permit Defendant to invoke an exception under rule 3.850(b)(2). *See Witt*, 387 So. 2d at 931 (holding a change of law is not retroactive “unless the change: (a) emanates from [the Supreme Court of Florida] or the United States Supreme Court, (b) is constitutional in nature, and (c) constitutes a development of fundamental significance”).

For the reasons above, no exception under rule 3.850(b) applies to Defendant’s remaining

claims, and thus, they are untimely. Accordingly, Defendant's motion filed on June 25, 2026, must be dismissed.

Accordingly, it is hereby

ORDERED AND ADJUDGED that Defendant's motions are **DISMISSED**.

DEFENDANT IS NOTIFIED that he has thirty (30) days from the date of this order in which to file an appeal, should he choose to do so.

DONE AND ORDERED in Chambers at Dade City, Pasco County, Florida, this ____ day of September, 2026. A true and correct copy of this order has been furnished to the parties listed below.

2022-CF-003171 9/4/2026 3:14:00 PM
Circuit Judge Gregory G. Groger
2022-CF-003171 9/4/2026 3:14:00 PM

GREGORY G. GROGER, CIRCUIT JUDGE

cc: Office of the State Attorney

Matthew Aaron David
4538 Charter Street
Zephyrhills, Florida 33542

Matthew Aaron David
General Delivery
Zephyrhills, Florida 33542

Matthew Aaron David via madavisfs20@gmail.com

EXHIBIT A

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT IN AND FOR PASCO COUNTY, FLORIDA CRIMINAL DIVISION

STATE OF FLORIDA,

Case Number(s):

22 CF 3171
21 CF 1143

vs.

Matthew Davis
aka _____

Person ID/SPN: _____

Defendant.

PLEA FORM

1. I, Matthew Davis, Defendant herein, do hereby withdraw my plea of Not Guilty and enter a plea of Guilty X No Contest _____ an Admission _____ to the charge(s) of Burglary (F3) - amended is to 21 CF 1143, as charged to all in the above-referenced case(s). This plea is to reduced charge(s) X others
2. I understand that a plea of Not Guilty denies my guilt, a plea of No Contest means that I will not contest the evidence against me, and a plea of Guilty or Admission to a violation of probation/community control admits my guilt. I understand that if the Court accepts my plea there will be **no trial or evidentiary hearing and I will be sentenced based upon my plea.**
3. I understand that the Judge may question me about the offense(s) and entry of the plea and that any false answer may be used against me in a perjury prosecution.
4. I understand that if the Court accepts my plea, I give up the following rights:
 - a. The right to a trial by jury or, for a violation of probation/community control, the right to a hearing before a judge.
 - b. The right to be represented by an attorney at every stage of the proceedings and the right to have an attorney appointed if I cannot afford one.
 - c. The right to confront and cross-examine witnesses at trial or a hearing on a violation of probation/community control.
 - d. The right to compel the attendance of witnesses at trial or a hearing on a violation of probation/community control.
 - e. The right not to testify or be compelled to incriminate myself.
 - f. The right to require the State to prove my guilt beyond a reasonable doubt or, if charged with a violation of probation/community control, the right to require the State to prove that I have willfully violated my probation by the greater weight of the evidence.
 - g. The right to appeal all matters related to the judgment within 30 days, including the issue of guilt or innocence, unless expressly reserved. I retain my right to review by appropriate collateral attack.
5. I understand the charge(s) placed against me and to which I am pleading. If applicable to my case(s), my lawyer has reviewed the sentencing guidelines scoresheet with me. My lawyer has also explained the following to me:
 - a. The essential elements of the charge(s) to which I am pleading.
 - b. Any possible defenses I may have to the charge(s) to which I am pleading.
 - c. The lowest permissible guidelines sentence and maximum sentence provided by law for the charge(s) to which I am pleading, which is/are: _____
 - d. Any minimum-mandatory penalties provided by law for the charge(s) to which I am pleading, which is/are: _____

MAD
Def. Initial

EXHIBIT A

Page 2 of 4 (Circuit Plea Form) Defendant:

Davis

Case Number(s):

22 CF 31713
21 CF 1143

6. I understand that if I am being sentenced as a () **Habitual Felony Offender**, () **Habitual Violent Felony Offender**, () **Three-Time Violent Felony Offender**, () **Violent Career Criminal**, or () **Prison Releasee Reoffender**, the statutory scoresheet recommendation will **NOT** apply to my sentence. If entitled to notice, I have received notice of the State's intention to enhance my sentence, or I hereby waive my right to such notice. I acknowledge that I have the requisite prior felony convictions to qualify for the indicated designation, that I have not been pardoned for the offense(s) connected with those convictions, and that none of those convictions have been set aside in any postconviction proceeding.
7. I understand that the Department of Corrections is solely responsible for awarding gain time or any type of early release. I further understand that, depending on the nature of the offense(s) to which I am pleading, I may **NOT** be eligible for gain time credits or release programs that shorten the length of the sentence(s) imposed. I understand that any information I have received concerning gain time or early release is not a part of any plea discussion or agreement.
8. I am entering this plea because I acknowledge my guilt or acknowledge that the plea is in my best interest. No one has pressured me or forced me to enter this plea against my will and no one has promised me anything to entice me to enter this plea; however, there has been an understanding that my sentence will consist of:
Time served on 22CF3171 + 21 CF 1143
- which () includes a minimum-mandatory term of n/a.
9. I am not aware of any physical evidence disclosed by the State for which DNA testing may exonerate me. I am not aware of any other physical evidence containing DNA known to exist that could exonerate me.
10. I do not require the State to tell the Judge the facts upon which the charge is based before the Judge accepts my plea and I agree that the Judge may rely upon any probable cause statement or affidavit in the court file for a factual basis to justify the acceptance of my plea.
11. I am not presently suffering from any mental, emotional, or physical problems, which adversely affect my understanding of this plea and I am not under the influence of alcohol, drugs, or medicine at the present time except for _____.
12. My education consists of 12 years of school. ↓ Associates Degree
13. I understand that if I am not a United States Citizen, this plea may have the additional consequence of changing my immigration status, including deportation or removal from the United States. I understand that if I need additional time to discuss this matter with counsel, I must request to do so at this time, and the court must allow me a reasonable amount of time to confer with counsel before accepting my plea.
14. I understand that if I have ever been convicted of or pled Guilty or No Contest to a sexually violent or sexually motivated offense, or if I am required to register as a sexual offender, or if I have ever been placed in the custody of the Department of Children and Families for evaluation as a sexual violent predator, I may be subject to a civil commitment proceeding for sexually violent predators as a result of this plea.
15. If I am entering a plea to an offense for which automatic, mandatory driver's license suspension or revocation is required, regardless of whether the suspension or revocation is by the court or by a separate agency, I understand that this plea may result in the automatic, mandatory suspension or revocation of my driver's license.
16. I understand that if I am on parole/conditional release, this plea may result in the revocation of my parole/conditional release and my return to prison to complete the sentence from which I was released. I further understand that if I am on probation/community control, this plea may result in the revocation of my probation/community control and the imposition of a separate sentence up to the maximum penalty for the offense for which I was placed on probation/community control.

MAO
Def. Initial

EXHIBIT A

Page 3 of 4 (Circuit Plea Form) Defendant:

DAVIS

Case Number(s):

22 CF 3171
21 CF 1143

17. I understand that if the Judge permits me to remain at liberty pending sentencing, I must notify my lawyer, my bondsman or ROR officer, and the Court of any change of address.

18. I understand that sentencing is scheduled for: May 2, 20 23 at 8:30 AM / PM.

Presentence Investigation

19. I understand that if I am being sentenced for my first felony offense, or as a Habitual Felony Offender, a Habitual Violent Felony Offender, Or Three-time Violent Felony Offender, I am entitled to a Presentence Investigation (PSI). I further understand that if I am a juvenile being prosecuted as an adult, I have the right to have the Court consider a Predisposition Report prepared by juvenile authorities, which would assist the Court in deciding if adult or juvenile sanctions should be imposed upon me. I hereby waive my right to a Pre-Sentence Investigation or Predisposition Report so that I may proceed directly to sentencing.

Credit for Time Served in County Jail

20. I understand that pursuant to this negotiated plea agreement, I will receive credit for time incarcerated in a county facility before the imposition of the sentence as outlined in this section. I also understand that I am waiving any entitlement to jail credit in the above-styled case(s) other than what is explicitly agreed to below as part of this negotiated plea agreement.

Case Number(s)*	Jail Credit
<u>22 CF 3171</u> <u>21 CF 1143</u>	<u>285</u>

*Include all case numbers to which this plea applies.

Restitution

21. I agree to restitution in the amount indicated in the attached Restitution Addendum incorporated as page 4 of 4. If the amount of restitution is not decided at this time, I understand that I will have 30 days from the date written notification of the preliminary amount of restitution is mailed to me, or otherwise delivered to me, to deliver to the Court a written request for a hearing contesting the preliminary amount of restitution. **Failure to deliver a written request for a restitution hearing within the 30 day time period specified herein will result in the preliminary amount of restitution being established as the final amount of restitution.**

() A restitution hearing has been scheduled for _____, 20 ____ at _____ AM / PM.

() I hereby waive my right to be present at the restitution hearing.

Costs and Fines

22. If I am to be placed on probation or community control, I will pay the cost of supervision as ordered by this Court commencing with the first day of probation or community control.

23. My attorney has reviewed with me all statutory costs being assessed by the Court. My attorney has further advised me that I have a right to have the amount of each discretionary cost individually announced in open court. I hereby waive my right to such individual announcement and agree to pay all fines and costs, including the fines and costs checked on the attached sheets. The total fines and costs are _____.

MAD
Def. Initial

EXHIBIT A

Page 4 of 4 (Circuit Plea Form) Defendant: Davis Case
Number(s): _____

22 CF 3171
21 CF 1143

Attorney Fees and Costs

24. If my lawyer was appointed to represent me, I understand that the Court will assess an application fee as part of my sentence or as a condition of probation if the application fee was not paid at the time of filing my affidavit of indigence with the Clerk of the Circuit Court. I understand that attorney fees and costs will be assessed against me pursuant to Section 938.29, Florida Statutes. I understand that I have a right to a hearing before the Court to determine the amount of attorney's fees and/or costs in excess of the minimum fees and costs provided by Section 938.29, Florida Statutes, and that I will be waiving or giving up that right if I do not deliver my written request for a contested hearing to the Court within 30 days from the date the preliminary amount is mailed or otherwise delivered to me.
25. I further understand that there will be lien(s) placed against me and/or my real property for any unpaid fines, attorney fees, costs of prosecution, and court costs.

I have read or had this plea form read to me by the undersigned interpreter, have understood every word, and have discussed it with my lawyer. I am completely satisfied with the services of my lawyer and I feel that I have had enough time to discuss my case(s) and this plea with my lawyer.

SWORN TO, SIGNED, AND FILED IN OPEN COURT in the presence of my lawyer and the Judge this 2
day of May, 2023.

☒ [Signature]
Defendant

I have read this form to the Defendant in _____
(language)

Interpreter

CERTIFICATE OF COUNSEL

I hereby certify that I am counsel for the above-named Defendant and that I have discussed this case with my client and explained the rights, defenses, elements, and evidence relating to this case to my client. I have further reviewed with my client all mandatory and discretionary statutory fines and costs being assessed against him/her. I have reviewed the discovery disclosed by the State, including a listing or a description of physical evidence. I reviewed the nature of the evidence disclosed through discovery with my client. I am personally unaware of any physical evidence for which DNA testing may exonerate my client. I have advised the Defendant of the deportation consequences of this plea including whether this plea will invoke any presumptively mandatory deportation proceedings under the Immigration and Nationality Act. I believe the Defendant understands this plea form, his/her rights and the consequences of pleading and that he/she is entering this plea freely, voluntarily, and knowingly. I do not believe the Defendant to be under the influence of any substances or suffering from any mental or emotional illness that prevents him/her from understanding these proceedings.

[Signature]
Counsel for the Defendant

I hereby certify that I am personally unaware of any physical evidence for which DNA testing may exonerate the above-named Defendant.

[Signature]
Assistant State Attorney

I hereby find that the above-named Defendant did, on this date, freely, voluntarily, and knowingly change his/her plea in the above-referenced case(s).

[Signature]
Circuit Judge

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS
36725 HOWARD AVE
DADE CITY, FL 33525

Division: SECTION 2
Case Number: **2021CF001143CFAXES**

☐ Comm Ctrl Violator ☐ Retrial
☐ Probation Violator ☐ Resentence

JUDGMENT

The Defendant, MATTHEW AARON DAVIS, being personally before this court and represented by, MICHELLE BUI, and the State represented by MICHELLE LEIGH LAVENDER and having:

- ☐ Been tried and found guilty by jury/ by court of the following crime(s)
☒ Entered a plea of guilty to the following crime(s)
☐ Entered a plea of nolo contendere to the following crime(s)

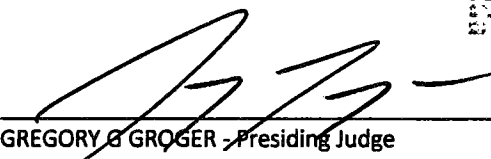
1. 810.02.4a Third Degree F BURGLARY-UNOCCUPIED STRUCTURE UNARMED : C1
2. 812.019.1 Second Degree F STOLEN PROP DEAL IN-DEALING TRAFFIC STOLEN PROPERTY : I9
3. 539.001.8b8b Second Degree F FRAUD FALSE OWNER INFO PAWNED ITEMS 300 DOLS OR MORE : 042

- ☒ and no cause shown why the defendant should not be adjudicated guilty. IT IS ORDERED THAT the defendant is hereby **ADJUDICATED GUILTY** of the above crime(s)
- ☐ and good cause being shown, IT IS ORDERED THAT ADJUDICATION OF GUILT BE **WITHHELD**
- ☐ the Court hereby stays and withholds the imposition of sentence as to count(s) 1 3 2 and places the defendant on _____ under the supervision of the Department of Corrections (Conditions of probation and/or community control set forth in a separate order)
- ☐ being a qualified offender pursuant to section 943.325, Florida Statute the defendant shall be required to submit DNA samples by law
- ☐ The Court defers imposition of sentence until _____
- ☐ The Court finds that the defendant violated all the conditions alleged in the affidavit, a copy of which is attached

The defendant in open court was advised of his right to appeal from this judgment by filing notice of appeal with Clerk of Court within thirty days following the date sentence is imposed or probation is ordered pursuant to this adjudication. The defendant was also advised of his right to the assistance of counsel in taking said appeal at the expense of the State upon showing of indigence.

DONE AND ORDERED this 5 day of MAY 2023, in Dade City, Pasco County, Florida,

NUNC PRO TUNC: 05/02/2023


GREGORY B GROGER - Presiding Judge

Clerk of Court
Pasco County, Florida

2023 MAY - 8 AM 11:06

EXHIBIT B
IN THE COURTS OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Division: SECTION 2
Case Number: 2021CF001143CFAXES
2022CF003171CFAXES

FINGERPRINTS OF DEFENDANT

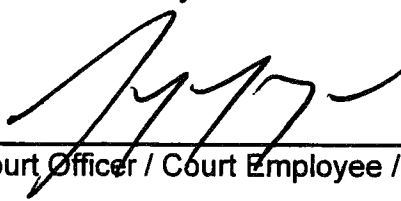
1. Right Thumb 	2. Right Index 	3. Right Middle 	4. Right Ring 	5. Right Little 
6. Left Thumb 	7. Left Index 	8. Left Middle 	9. Left Ring 	10. Left Little 

Fingerprints taken by Kent Bennett Bailiff.

I HEREBY CERTIFY that the above and foregoing fingerprints are the fingerprints of the defendant, MATTHEW AARON DAVIS , and that they were placed thereon by the defendant in my presence this the 2nd day of MAY 2023.

[OR]

I HEREBY CERTIFY that the digital fingerprint record associated with Transaction Control Number _____ contains the fingerprints of the defendant, MATTHEW AARON DAVIS , which were electronically captured from the defendant in my presence this the 2nd day of MAY 2023.



Court Officer / Court Employee / Criminal Justice Employee

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Division: SECTION 2
Case Number: 2021CF001143CFAXES

ORDER FOR CHARGES/COSTS/FEEs

- ☒ A sum of \$ 3.00 Pursuant to Section 938.01, Florida Statute (Additional Court Costs for Clearing House Trust Fund)
- ☒ A sum of \$ 50.00 Pursuant to Section 938.03, Florida Statute (Crimes Compensation Trust Fund)
- ☒ A sum of \$ 2.00 Pursuant to Section 938.15, Florida Statute (Criminal Justice Education by Municipalities and Counties)
- ☐ A sum of \$ _____ A fine, pursuant to Section 775.0835, Florida Statutes. *(This provision refers to the optional fine for the Crimes Compensation Trust Fund and is not applicable unless checked and completed. Fines imposed as part of sentence to Section 775.083, Florida Statutes are to be recorded on the sentence page(s)).*
- ☒ A sum of \$ 225.00 Pursuant to Section 938.05, Florida Statute (Fine and Forfeiture Fund)
- ☒ A sum of \$ 104.00 Pursuant to Section 938.27(1), Florida Statute (Cost of Investigation) Paid to Pasco County Sheriff
- ☒ A sum of \$ 20.00 Pursuant to Section 938.06, Florida Statute (Crime Stoppers Trust Fund)
- ☒ A sum of \$ 100.00 Pursuant to Section 938.27(8), Florida Statute (State Attorney Cost of Prosecution)
- ☒ A sum of \$ 100.00 Pursuant to Section 938.29, Florida Statute (Public Defender/Court Appointed Fees)
- ☐ A sum of \$ _____ For Restitution
- ☐ A sum of \$ 100.00 Pursuant to Section 938.055, Florida Statute (FDLE Operating Fund)
- ☒ A sum of \$ 125.72 Fine pursuant to Section 775.083, Florida Statutes
- ☒ A sum of \$ 6.28 Fine Surcharge to Section 938.04, Florida Statute
- ☒ A sum of \$ 50.00 Pursuant to Section 27.52, Florida Statute (Criminal Indigent Defense Fund)
- ☒ A sum of \$ 50.00 Fine pursuant to Section 775.083(2), Florida Statutes (Crime Prevention Court Costs)
- ☐ A sum of \$ 151.00 Pursuant to Section 938.10, Florida Statute (Crimes Against Minors)
- ☐ A sum of \$ 201.00 Pursuant to Section 938.08, Florida Statute (Domestic Violence Trust Fund)
- ☐ A sum of \$ 151.00 Pursuant to Section 938.085, Florida Statute (Rape Crisis Program Trust Fund)
- ☐ A sum of \$ 1,001.00 Pursuant to Section 817.568, Florida Statute (Criminal Use of Personal ID Surcharge)
- ☒ A sum of \$ 65.00 Pursuant to Section 939.185, Florida Statute and Ordinance 04-23 (Costs for County Programs)
- ☐ A sum of \$ 30.00 Pursuant to Section 318.18(13)(a), Florida Statute and Ordinance 04-24 (Traffic Surcharge)
- ☒ A sum of \$ 3.00 Pursuant to Section 938.19, Florida Statute and Ordinance 05-25 (Teen Court)
- ☐ A sum of \$ 3.00 Pursuant to Section 318.18(17), Florida Statute (State Radio Systems)
- ☐ A sum of \$ 135.00 Pursuant to Section 938.07, Florida Statute (DUI Cost)
- ☐ A sum of \$ 7.00 Pursuant to Section 943.325, Florida Statute (for collecting DNA sample)
- ☐ A sum of \$ 0.00 Pursuant to Section 893.13, Florida Statute plus a 5% surcharge of \$0.00
- ☐ A sum of \$ 0.00 Pursuant to Section 938.04, Florida Statute
- ☐ A sum of \$ 0.00 Pursuant to Section 316.193, Florida Statute (DUI Fine) plus a 5% surcharge of \$0.00
- ☐ A sum of \$ 0.00 Pursuant to Section 938.04, Florida Statute
- ☐ A sum of \$ 15.00 Pursuant to Section 938.13, Florida Statute (Substance Abuse Surcharge).
- ☐ A sum of \$ _____ Other:

If you are unable to pay for financial obligations today or as otherwise directed by the Court, you must go to the Clerk's Office to set up a payment plan and pay a \$25.00 application fee pursuant to section 28.246, Florida Statutes. Failure to do so may result in suspension of your driver's license.

DONE AND ORDERED this 5 day of MAY 2023, in Dade City, Pasco County, Florida,

NUNC PRO TUNC: 05/02/2023

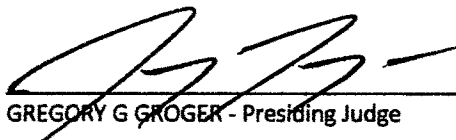

GREGORY G GROGER - Presiding Judge

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Case Number: 2021CF001143CFAXES

SENTENCING ORDER
(As To Count 1, 2 & 3)

The Defendant, being personally before this court and accompanied the defendant's attorney of record, MICHELLE BUI, and having been adjudicated guilty herein, and the court having given the Defendant an opportunity to be heard and to offer matters in mitigation of sentence, and to show cause why the Defendant should not be sentenced as provided by law, and no cause being shown

- ☐ and the Court having on 05/02/2023 deferred imposition of sentence until this date
- ☐ and the Court having previously entered a judgment in this case on _____ now resentsences the Defendant
- ☐ and the Court having placed the Defendant on probation / community control and having subsequently revoked the defendant's probation / community control. The Court found the defendant in violation of specific conditions of probation/community control, see attached affidavit.

It is The Sentence Of The Court That:

- ☒ The Defendant pay a fine of \$ 125.72 pursuant to section 775.083, Florida Statutes, plus \$ 6.28 (5% as the surcharge) required by section 938.04, Florida Statutes.
- ☐ The Defendant is hereby committed to the custody of the Department of Corrections.
- ☒ The Defendant is hereby committed to custody of Pasco County Corrections, Florida.
___ Option A Unless otherwise prohibited by law, Pasco County Corrections is authorized to release the defendant on electronic monitoring or other sentencing programs subject to Corrections' discretion.
___ Option B Pasco County Corrections is not authorized to release the defendant on electronic monitoring or other sentencing programs.
- ☐ The Defendant is sentenced as a youthful offender in accordance with section 958.04, Florida Statutes.

To Be Imprisoned (Check one; unmarked sections are inapplicable):

- ☐ For a term of natural life.
- ☒ For a term of TIME SERVED
- ☐ Said SENTENCE SUSPENDED for a period of _____ Subject to conditions set forth in this order.

If "split" sentence, complete the appropriate paragraph.

- ☐ Followed by a period of _____ Community Control / Probation under the supervision of the Department of Corrections according to the terms and conditions of supervision set forth in a separate order entered herein.
- ☐ However, after serving a period of _____ Imprisoned in _____ the balance of the sentence shall be suspended and the Defendant shall be placed on probation / community control for a period of _____ under the supervision of the Department of Corrections according to terms and conditions of supervision set forth in a separate order entered herein.

In the event the Defendant is ordered to serve additional split sentences, all incarceration portions shall be satisfied before the Defendant begins service of the supervision terms.

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Case Number: 2021CF001143CFAXES

Special Provisions / Other Provisions:

- Retention of Jurisdiction ☐ This court retains jurisdiction over the defendant pursuant to section 947.16(3), Florida Statutes (1983).
- Jail Credit ☒ It is further ordered that the defendant shall be allowed a total of 288 days as credit for time incarcerated before imposition of this sentence.
- Prison Credit ☐ It is further ordered that the defendant be allowed credit for all-time previously served on this count in the Department of Corrections prior to resentencing.
- Consecutive / Concurrent As to Other Counts ☒ It is further ordered the sentence imposed for COUNTS 2 & 3 shall run CONCURRENT with the sentence set forth in COUNT 1.
- Consecutive / Concurrent As to Other Convictions ☐ It is further ordered that the composite term of all sentences imposed for the counts specified in this order shall run (check one)
- ☐ consecutive to ☐ concurrent with the following (check one)
- ☐ any active sentence being served
- ☐ specific sentences:
- _____
- _____
- _____
- No Contact ☐ It is further ordered that the defendant is prohibited from having contact with the Victim, directly or indirectly, including through a third person, for the duration of the sentence.

*Immigration Detainer: It is further ordered that, as per s. 908.104(3)(b), F.S., the secure correctional facility in which the defendant is to be confined shall reduce the defendant's sentence by a period of not more than 12 days on the facility's determination that the reduction in sentence will facilitate the seamless transfer of the defendant into federal custody.

In the event the above sentence is to the Department of Corrections, Pasco County Corrections, Florida is hereby ordered and directed to deliver the defendant to the Department of Corrections at the facility designated by the department together with a copy of this judgment and sentence and any other documents specified by Florida Statute.

The defendant in open court was advised of the right to appeal from this sentence by filing notice of appeal within 30 days from this date with the clerk of this court and the defendant's right to the assistance of counsel in taking the appeal at the expense of the State on showing of indigence.

In imposing the above sentence, the court further recommends

☒	Pay or enter into payment plan within 60 days of release to satisfy court costs.
☐	
☐	
☐	
☐	
☐	

DONE AND ORDERED in open court at Pasco County, Florida this 5 day of MAY 2023.

NUNC PRO TUNC: 05/02/2023


GREGORY G GROGER - Presiding Judge

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida

VS

MATTHEW AARON DAVIS

Case Number: 2021CF001143CFAXES

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished to:

☒ Personal Service to State Attorney for the Sixth Judicial Circuit, Pasco County, Florida

☒ Personal Service

☒ U.S. Mail

☐ Email

To: MICHELLE BUI, Attorney of Record
401 EAST JACKSON STREET
SUITE 2340
TAMPA, FL 33602

BUILAWOFFICE@GMAIL.COM

☒ Personal Service

☒ U.S. Mail

☐ Email

To:

Dated this 8 day of MAY 2023.

Nikki Alvarez-Sowles, Esq.
Pasco County Clerk & Comptroller

By: M. A. Pfort

Deputy Clerk

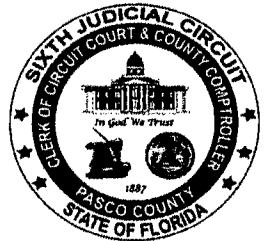


EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS
36725 HOWARD AVE
DADE CITY, FL 33525

Division: SECTION 2
Case Number: 2022CF003171CFAXES

☐ Comm Ctrl Violator ☐ Retrial
☐ Probation Violator ☐ Resentence

JUDGMENT

The Defendant, MATTHEW AARON DAVIS, being personally before this court and represented by, MICHELLE BUI, and the State represented by MICHELLE LEIGH LAVENDER and having:

- ☐ Been tried and found guilty by jury/ by court of the following crime(s)
☒ Entered a plea of guilty to the following crime(s)
☐ Entered a plea of nolo contendere to the following crime(s)

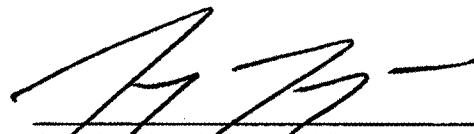
1. 784.021.1a Third Degree F AGGRAVATED ASSAULT - WEAPON-WITH DEADLY WEAPON WITHOUT INTENT TO KILL : 7Y
2. 784.021.1a Third Degree F AGGRAVATED ASSAULT - WEAPON-WITH DEADLY WEAPON WITHOUT INTENT TO KILL : 7Y

- ☒ and no cause shown why the defendant should not be adjudicated guilty. IT IS ORDERED THAT the defendant is hereby **ADJUDICATED GUILTY** of the above crime(s)
☐ and good cause being shown, IT IS ORDERED THAT ADJUDICATION OF GUILT BE **WITHHELD**
☐ the Court hereby stays and withholds the imposition of sentence as to count(s) 1 2 and places the defendant on _____ under the supervision of the Department of Corrections (Conditions of probation and/or community control set forth in a separate order)
☐ being a qualified offender pursuant to section 943.325, Florida Statute the defendant shall be required to submit DNA samples by law
☐ The Court defers imposition of sentence until
☐ The Court finds that the defendant violated all the conditions alleged in the affidavit, a copy of which is attached

The defendant in open court was advised of his right to appeal from this judgment by filing notice of appeal with Clerk of Court within thirty days following the date sentence is imposed or probation is ordered pursuant to this adjudication. The defendant was also advised of his right to the assistance of counsel in taking said appeal at the expense of the State upon showing of indigence.

DONE AND ORDERED this 5 day of MAY 2023, in Dade City, Pasco County, Florida,

NUNC PRO TUNC: 05/02/2023


GREGORY G GROGER - Presiding Judge

Nikki Alvarez-Santos
Clerk & Court Reporter
Pasco County, Florida

2023 MAY -8 AM 11:05

Filed for Court
2023 MAY -8 AM 11:05

EXHIBIT B

IN THE COURTS OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Division: SECTION 2
Case Number: 2021CF001143CFAXES
2022CF003171CFAXES

FINGERPRINTS OF DEFENDANT

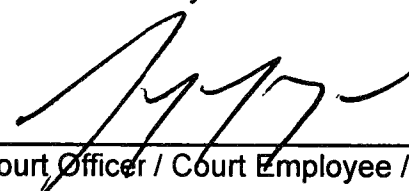
1. Right Thumb	2. Right Index	3. Right Middle	4. Right Ring	5. Right Little
				
6. Left Thumb	7. Left Index	8. Left Middle	9. Left Ring	10. Left Little
				

Fingerprints taken by KENT BENNET Bailiff.

I HEREBY CERTIFY that the above and foregoing fingerprints are the fingerprints of the defendant, MATTHEW AARON DAVIS , and that they were placed thereon by the defendant in my presence this the 2nd day of MAY 2023.

[OR]

I HEREBY CERTIFY that the digital fingerprint record associated with Transaction Control Number _____ contains the fingerprints of the defendant, MATTHEW AARON DAVIS , which were electronically captured from the defendant in my presence this the 2nd day of MAY 2023.



Court Officer / Court Employee / Criminal Justice Employee

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Division: SECTION 2
Case Number: 2022CF003171CFAXES

ORDER FOR CHARGES/COSTS/FEEs

- ☒ A sum of \$ 3.00 Pursuant to Section 938.01, Florida Statute (Additional Court Costs for Clearing House Trust Fund)
- ☒ A sum of \$ 50.00 Pursuant to Section 938.03, Florida Statute (Crimes Compensation Trust Fund)
- ☒ A sum of \$ 2.00 Pursuant to Section 938.15, Florida Statute (Criminal Justice Education by Municipalities and Counties)
- ☐ A sum of \$ _____ A fine, pursuant to Section 775.0835, Florida Statutes. *(This provision refers to the optional fine for the Crimes Compensation Trust Fund and is not applicable unless checked and completed. Fines imposed as part of sentence to Section 775.083, Florida Statutes are to be recorded on the sentence page(s)).*
- ☒ A sum of \$ 225.00 Pursuant to Section 938.05, Florida Statute (Fine and Forfeiture Fund)
- ☒ A sum of \$ 130.00 Pursuant to Section 938.27(1), Florida Statute (Cost of Investigation) Paid to Pasco County Sheriff
- ☒ A sum of \$ 20.00 Pursuant to Section 938.06, Florida Statute (Crime Stoppers Trust Fund)
- ☒ A sum of \$ 100.00 Pursuant to Section 938.27(8), Florida Statute (State Attorney Cost of Prosecution)
- ☒ A sum of \$ 100.00 Pursuant to Section 938.29, Florida Statute (Public Defender/Court Appointed Fees)
- ☐ A sum of \$ _____ For Restitution
- ☐ A sum of \$ 100.00 Pursuant to Section 938.055, Florida Statute (FDLE Operating Fund)
- ☒ A sum of \$ 125.72 Fine pursuant to Section 775.083, Florida Statutes
- ☒ A sum of \$ 6.28 Fine Surcharge to Section 938.04, Florida Statute
- ☒ A sum of \$ 50.00 Pursuant to Section 27.52, Florida Statute (Criminal Indigent Defense Fund)
- ☒ A sum of \$ 50.00 Fine pursuant to Section 775.083(2), Florida Statutes (Crime Prevention Court Costs)
- ☐ A sum of \$ 151.00 Pursuant to Section 938.10, Florida Statute (Crimes Against Minors)
- ☒ A sum of \$ 402.00 Pursuant to Section 938.08, Florida Statute (Domestic Violence Trust Fund)
- ☒ A sum of \$ 302.00 Pursuant to Section 938.085, Florida Statute (Rape Crisis Program Trust Fund)
- ☐ A sum of \$ 1,001.00 Pursuant to Section 817.568, Florida Statute (Criminal Use of Personal ID Surcharge)
- ☒ A sum of \$ 65.00 Pursuant to Section 939.185, Florida Statute and Ordinance 04-23 (Costs for County Programs)
- ☐ A sum of \$ 30.00 Pursuant to Section 318.18(13)(a), Florida Statute and Ordinance 04-24 (Traffic Surcharge)
- ☒ A sum of \$ 3.00 Pursuant to Section 938.19, Florida Statute and Ordinance 05-25 (Teen Court)
- ☐ A sum of \$ 3.00 Pursuant to Section 318.18(17), Florida Statute (State Radio Systems)
- ☐ A sum of \$ 135.00 Pursuant to Section 938.07, Florida Statute (DUI Cost)
- ☐ A sum of \$ 7.00 Pursuant to Section 943.325, Florida Statute (for collecting DNA sample)
- ☐ A sum of \$ 0.00 Pursuant to Section 893.13, Florida Statute plus a 5% surcharge of \$0.00
Pursuant to Section 938.04, Florida Statute
- ☐ A sum of \$ 0.00 Pursuant to Section 316.193, Florida Statute (DUI Fine) plus a 5% surcharge of \$0.00
Pursuant to Section 938.04, Florida Statute
- ☐ A sum of \$ 15.00 Pursuant to Section 938.13, Florida Statute (Substance Abuse Surcharge).
- ☐ A sum of \$ _____ Other:

If you are unable to pay for financial obligations today or as otherwise directed by the Court, you must go to the Clerk's Office to set up a payment plan and pay a \$25.00 application fee pursuant to section 28.246, Florida Statutes. Failure to do so may result in suspension of your driver's license.

DONE AND ORDERED this 8 day of MAY 2023, in Dade City, Pasco County, Florida,

NUNC PRO TUNC: 05/02/2023


GREGORY G GROGER - Presiding Judge

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Case Number: 2022CF003171CFAXES

SENTENCING ORDER
(As To Count 1 & 2)

The Defendant, being personally before this court and accompanied the defendant's attorney of record, MICHELLE BUI, and having been adjudicated guilty herein, and the court having given the Defendant an opportunity to be heard and to offer matters in mitigation of sentence, and to show cause why the Defendant should not be sentenced as provided by law, and no cause being shown

- ☐ and the Court having on _____ deferred imposition of sentence until this date
- ☐ and the Court having previously entered a judgment in this case on _____ now resentsences the Defendant
- ☐ and the Court having placed the Defendant on probation / community control and having subsequently revoked the defendant's probation / community control. The Court found the defendant in violation of specific conditions of probation/community control, see attached affidavit.

It is The Sentence Of The Court That:

- ☒ The Defendant pay a fine of \$ 125.72 pursuant to section 775.083, Florida Statutes, plus \$ 6.28 (5% as the surcharge) required by section 938.04, Florida Statutes.
- ☐ The Defendant is hereby committed to the custody of the Department of Corrections.
- ☐ The Defendant is hereby committed to custody of Pasco County Corrections, Florida.
___ Option A Unless otherwise prohibited by law, Pasco County Corrections is authorized to release the defendant on electronic monitoring or other sentencing programs subject to Corrections' discretion.
___ Option B Pasco County Corrections is not authorized to release the defendant on electronic monitoring or other sentencing programs.
- ☐ The Defendant is sentenced as a youthful offender in accordance with section 958.04, Florida Statutes.

To Be Imprisoned (Check one; unmarked sections are inapplicable):

- ☐ For a term of natural life.
- ☒ For a term of TIME SERVED
- ☐ Said SENTENCE SUSPENDED for a period of _____ Subject to conditions set forth in this order.

If "split" sentence, complete the appropriate paragraph.

- ☐ Followed by a period of _____ Community Control / Probation under the supervision of the Department of Corrections according to the terms and conditions of supervision set forth in a separate order entered herein.
- ☐ However, after serving a period of _____ Imprisoned in _____ the balance of the sentence shall be suspended and the Defendant shall be placed on probation / community control for a period of _____ under the supervision of the Department of Corrections according to terms and conditions of supervision set forth in a separate order entered herein.

In the event the Defendant is ordered to serve additional split sentences, all incarceration portions shall be satisfied before the Defendant begins service of the supervision terms.

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS
MATTHEW AARON DAVIS

Case Number: 2022CF003171CFAXES

Special Provisions / Other Provisions:

- Retention of Jurisdiction ☐ This court retains jurisdiction over the defendant pursuant to section 947.16(3), Florida Statutes (1983).
- Jail Credit ☒ It is further ordered that the defendant shall be allowed a total of 277 days as credit for time incarcerated before imposition of this sentence.
- Prison Credit ☐ It is further ordered that the defendant be allowed credit for all-time previously served on this count in the Department of Corrections prior to resentencing.
- Consecutive / Concurrent As to Other Counts ☒ It is further ordered the sentence imposed for COUNT 2 shall run CONCURRENT with the sentence set forth in COUNT 1.
- Consecutive / Concurrent As to Other Convictions ☐ It is further ordered that the composite term of all sentences imposed for the counts specified in this order shall run (check one)
- ☐ consecutive to ☐ concurrent with the following (check one)
- ☐ any active sentence being served
- ☐ specific sentences:
- _____
- _____
- _____
- No Contact ☐ It is further ordered that the defendant is prohibited from having contact with the Victim, directly or indirectly, including through a third person, for the duration of the sentence.

*Immigration Detainer: It is further ordered that, as per s. 908.104(3)(b), F.S., the secure correctional facility in which the defendant is to be confined shall reduce the defendant's sentence by a period of not more than 12 days on the facility's determination that the reduction in sentence will facilitate the seamless transfer of the defendant into federal custody.

In the event the above sentence is to the Department of Corrections, Pasco County Corrections, Florida is hereby ordered and directed to deliver the defendant to the Department of Corrections at the facility designated by the department together with a copy of this judgment and sentence and any other documents specified by Florida Statute.

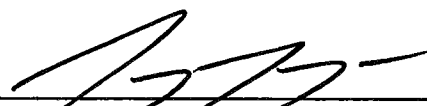
The defendant in open court was advised of the right to appeal from this sentence by filing notice of appeal within 30 days from this date with the clerk of this court and the defendant's right to the assistance of counsel in taking the appeal at the expense of the State on showing of indigence.

In imposing the above sentence, the court further recommends

☒	Pay or enter into payment plan within 60 days of release to satisfy court costs.
☐	
☐	
☐	
☐	
☐	

DONE AND ORDERED in open court at Pasco County, Florida this 5 day of MAY 2023.

NUNC PRO TUNC: 05/02/2023



GREGORY G GROGER - Presiding Judge

EXHIBIT B
IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

State of Florida
VS

Case Number: 2022CF003171CFAXES

MATTHEW AARON DAVIS

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished to:

☒ Personal Service to State Attorney for the Sixth Judicial Circuit, Pasco County, Florida

☒ Personal Service

☒ U.S. Mail

☐ Email

To: MICHELLE BUI, Attorney of Record
401 EAST JACKSON STREET
SUITE 2340
TAMPA, FL 33602

BUILAWOFFICE@GMAIL.COM

☒ Personal Service

☒ U.S. Mail

☐ Email

To:

Dated this 8 day of MAY 2023.

Nikki Alvarez-Sowles, Esq.
Pasco County Clerk & Comptroller

By: M. A. Post

Deputy Clerk

